

Court No. - 21

Case :- WRIT - C No. - 16430 of 2023

Petitioner :- Smt. Afiya Khatoon

Respondent :- State Of U.P.And 3 Others

Counsel for Petitioner :- Shahbaz Khan,Mohd Adil

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. Sri N.K. Tiwari, learned counsel for the respondent-Electricity Department, prays for and is granted time to obtain instructions.
2. List as fresh on 29.5.2023.
3. In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery proceedings.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 16.5.2023

Jaideep/-

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Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. The petitioner has challenged the notice of provisional assessment dated 6.11.2019, issued by the respondent-Electricity Department against her.
2. Sri N.K. Tiwari, learned counsel for the respondent-Electricity Department, states that the impugned recovery notice has been withdrawn as fresh order would be passed after granting opportunity of hearing to the petitioner. A communication sent to the Tehsil Authorities in this behalf by respondent no. 3, has also been placed before us for perusal.
3. Having regard to the aforesaid submissions, nothing further survives to be decided in the instant matter.
4. The petition is disposed of with liberty to the respondents to pass fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 29.5.2023

Jaideep/-